

THE CORPORATION OF THE VILLAGE OF MERRICKVILLE-WOLFORD

BY-LAW 44-2025

Being a By-law to Regulate the Operation of Off-Road Vehicles Under the Jurisdiction of the Village of Merrickville-Wolford

WHEREAS Section 9 of the *Municipal Act, 2001*, as amended, provides that a municipality has the capacity, rights, and privileges of a natural person for the purpose of exercising its authority under that Act, or any other Act; and

WHEREAS Section 191.8 of the *Highway Traffic Act* and Ontario Regulation 316/03 provides that the Council of a municipality may pass by-laws permitting the use of off-road vehicles on certain highways under its jurisdiction, and may regulate certain characteristics of use on those highways; and

WHEREAS the Council of the Corporation of the Village of Merrickville-Wolford deems it appropriate to repeal and replace the by-law to regulate, govern and limit the operation of Off-Road Vehicles on municipal roads within the Village of Merrickville-Wolford;

NOW THEREFORE the Council of the Corporation of the Village of Merrickville-Wolford hereby enacts as follows:

1. Title

This By-law shall be referred to as the "Off-Road Vehicle" (ORV) By-law.

2. Definitions

For the purposes of this by-law, the following definitions apply:

2.1 **All-Terrain Vehicle (ATV)** shall have the same meaning as that defined in the *Highway Traffic Act* and Ontario Regulation 316/03.

2.2 **Highway** shall have the same meaning as defined in the *Highway Traffic Act*.

2.3 **Off-Road Vehicle (ORV)** shall have the same meaning as that defined in the *Off-Road Vehicles Act*.

2.4 Where not elsewhere specified in this By-law, all definitions shall be the same as those in the *Municipal Act*, the *Highway Traffic Act*, the *Off-Road Vehicles Act*, and their regulations, as applicable.

3. Regulation of Off-Road Vehicles on Highways

3.1 The operation of Off-Road Vehicles (ORVs) shall be permitted upon the highways under the jurisdiction of the Village of Merrickville-Wolford in accordance with the provisions of this By-law and in accordance with Ontario Regulation 316/03 of the *Highway Traffic Act* and the *Off-Road Vehicles Act*. All permitted and limited routes within the Village of Merrickville proper are listed in Schedule "A" of this By-law.

3.2 No ORV shall be operated on highways unless it meets the equipment requirements of Sections 7 to 15 of Ontario Regulation 316/03.

3.3 Every person who operated an ORV on a highway under the jurisdiction of the Village of Merrickville-Wolford shall comply with the following provisions:

- a) An off-road vehicle shall have visible reflective strips maintained on all four sides of the vehicle;
- b) An off-road vehicle shall not have chains or studs on its tires.

3.4 An off-road vehicle shall not be driven at a speed greater than:

- a) 20 kilometres per hour, if the speed limit established under the *Highway Traffic Act* or by Municipal By-law for that part of the highway is not greater than 50 kilometres per hour.
- b) 50 kilometres per hour, if the speed limit established under the *Highway Traffic Act* or by Municipal By-law for that part of the highway is greater than 50 kilometres per hour.

3.5 There shall be a curfew in effect seven (7) days a week from one half (1/2) hour before sunset to one half (1/2) hour after sunrise.

3.6 This By-law does not regulate the use of ORVs on:

- a) Private roads or private right-of-ways;
- b) Provincial highways;
- c) United Counties of Leeds and Grenville highways; or
- d) Any highways situated outside the Village of Merrickville-Wolford including the portion of any boundary road not owned by the Village of Merrickville-Wolford.

3.7 This By-law in no way provides permission for ORV or ATV trails to cross privately held property. It is the responsibility of the user/club to obtain written permission for the use of private property.

3.8 No person shall drive an ORV within municipal parks. The only exception to this is any ORV used by emergency services.

4. Enforcement and Penalties

4.1 Any person who contravenes any section of this By-law is guilty of an offence and upon conviction is liable to a fine as provided for in the Provincial Offences Act, as amended.

4.2 Upon registering a conviction for a contravention of any provision of the by-law, the court, may, in addition to any other remedy and to any penalty imposed by the by-law, make an order prohibiting the continuation or repetition of the offence by the person convicted, pursuant to Section 431 of the *Municipal Act, S.O. 2001*, as amended.

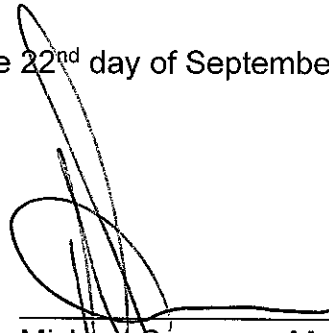
4.3 Notwithstanding sections 4.1. and 4.2 of this By-law, every person who contravenes any provision of this By-law shall, upon issuance of an Administrative Penalty Notice in accordance with Administrative Penalty By-law 10-2025 be liable to pay to the Corporation of the Village of Merrickville-Wolford an Administrative Penalty in accordance with Schedule "C" of Administrative Penalty Process By-law 10-2025.

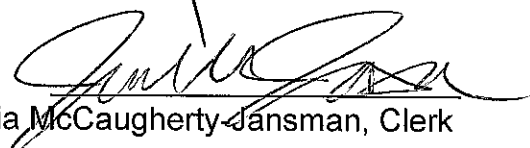
4.4 If a person is required to pay an Administrative Penalty under section 4 in respect to contravention of this By-law, the person shall not be charged with an offence in respect of the same contravention.

5. Administration

- 5.1 If any section, clause or provision of this By-law is for any reason declared by a court of competent jurisdiction to be invalid, the same shall not affect the validity of this By-law as a whole or any part thereof other than that section, clause or provision so declared to be invalid and it is hereby declared to be the intention that all the remaining sections, clauses or provision of this By-law shall remain in force and effect until repealed, notwithstanding that one or more provisions thereof shall have been declared to be invalid.
- 5.2 Schedule "A" to this By-law may be changed from time to time, as deemed desirable by Council, by way of resolution or amending By-law.
- 5.3 That By-laws 09-2016 and 17-2017, and any other by-laws that are inconsistent with this By-law, are hereby repealed in their entirety.
- 5.4 This By-law shall come into force and take effect immediately upon the final passing thereof.

Read a first, second and third time and passed on the 22nd day of September, 2025.



Michael Cameron, Mayor

Julia McCaugherty-Jansman, Clerk

Schedule “A” to By-law 44-2025

Off-road vehicles (ORVs) shall be permitted to access highways within and under the jurisdiction of the Village of Merrickville-Wolford. The authority shall not extend to highways under the jurisdiction of the United Counties of Leeds and Grenville, exclusive of the County Roads as listed below that have been approved by the United Counties of Leeds and Grenville.

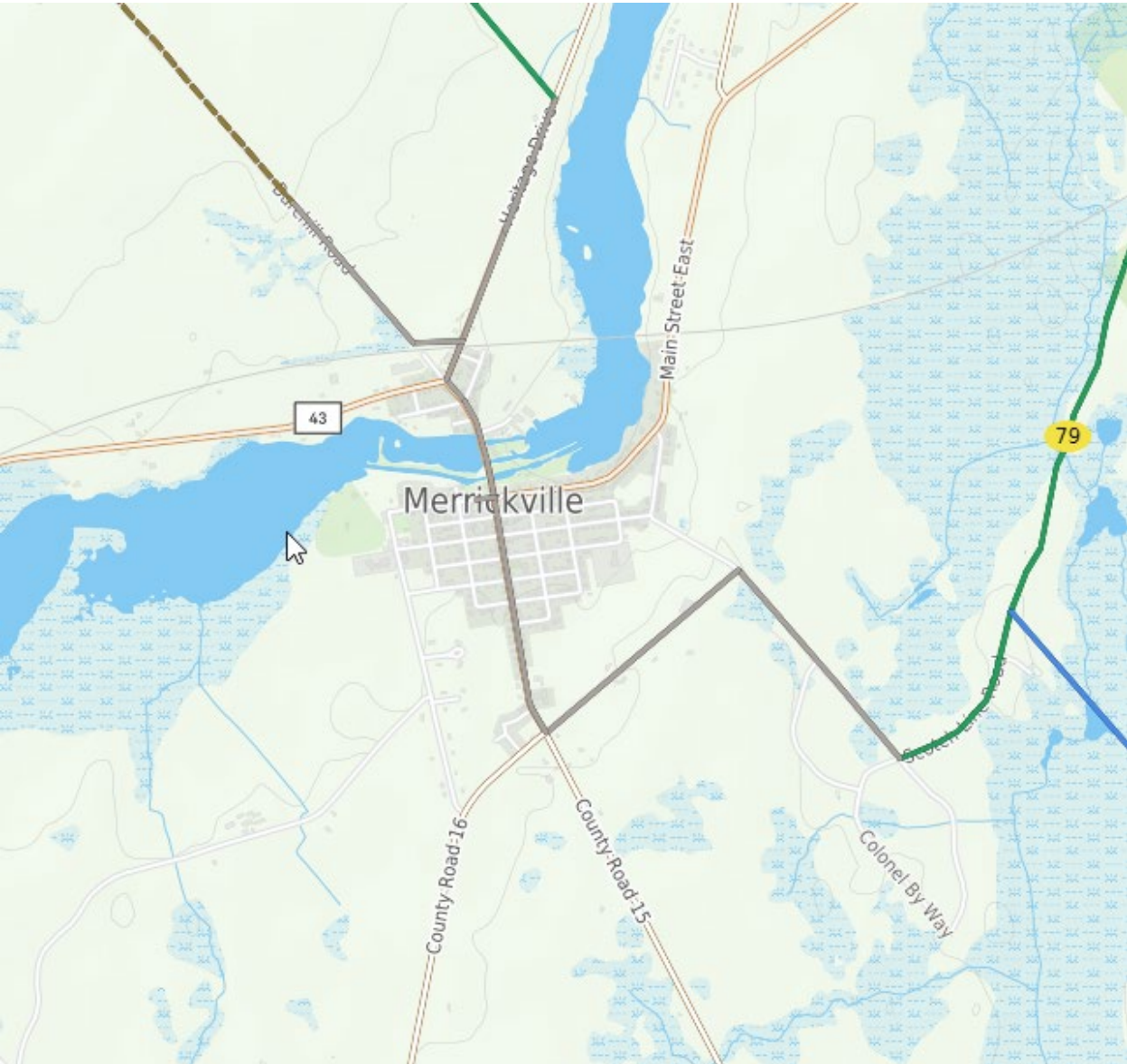
Notwithstanding the above, the ORVs shall not be permitted on local municipal roads within the boundaries and confine of the Villager proper. Residents within the Village proper may travel on ORVs to and from permitted highways by the most direct route.

The permitted County Roads within the Village proper is the following:

County Road Alias	From	To
43	Broadway Street	St. Lawrence Street
15	County Road 43	County Road 16
16	County Road 15	Read Street

*Note: County Road 16 portion is accepted by the United Counties of Leeds and Grenville for use, but it is not intended to be used by the RLATVC.

The permitted routes for ORVs to travel from the designated ATV trails are included in the map below:



The permitted trail description is as noted below:
Montague Street to Railway Street

Onto Broadway Street East
Onto Mill Street/County Road 43
Onto St. Lawrence Street
(onto small portion of Main Street West to park and explore the Village)
St. Lawrence Street to HF McLean
Onto Collar Hill Road – Southerly
Onto Scotch Line Road